

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adrian Legaspi	Team: Team # 4	CCRB Case #: 201206303	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/15/2012 6:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/15/2013	Precinct: 77		
Date/Time CV Reported Wed, 05/16/2012 2:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 05/16/2012 2:30 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Raymond Tomins	05336	902480	WARRSEC		
2. Officers					
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. DT3 Felix Garcia	04045	906303	WARRSEC		
2. DT3 Michael Perez	02470	930939	WARRSEC		
3. DT3 Brian Ilund	00113	911694	WARRSEC		
4. DT3 Michael Ragona	05697	916485	WARRSEC		
Officer(s)	Allegation			Investigator Recommendation	
A . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins authorized the entry and search of § 87(2)(b) Brooklyn.			A . Unsubstantiated	
B . Officers	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b)			B . Officer(s) Unidentified	

Case Summary

On May 15, 2012, § 87(2)(b) came to the CCRB in-person to file a complaint against NYPD officers (encl. 5 - 9).

On May 15, 2012, at approximately 6:30 a.m., several officers knocked on § 87(2)(b)'s apartment door at § 87(2)(b) Brooklyn. When § 87(2)(b) answered the door, the following allegations resulted:

Allegation A – Abuse of Authority: Sgt. Raymond Tomins authorized the entry and search of § 87(2)(b) in Brooklyn.

- § 87(2)(g) it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B – Abuse of Authority: Officers refused to provide their names and shield numbers to § 87(2)(b)

- § 87(2)(g) it is recommended that **Allegation B be closed as Officers Unidentified.**

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

On May 16, 2012, § 87(2)(b) was interviewed as a walk-in at the CCRB (encl.5 - 9).

On May 15, 2012, at approximately 6:30 AM, § 87(2)(b) was sleeping in her apartment, located at § 87(2)(b) in Brooklyn. § 87(2)(b)'s apartment is a one-bedroom apartment and she had been living there for eleven months. § 87(2)(b) noted that either in January or February of 2012, officers came to her house and damaged the peephole in her front door. She has told her management about the peephole, but it has not been repaired or replaced.

On May 15, 2012 she was woken by the sound of knocking at her front door. Several voices announced that they were the police. The officers only announced themselves once and knocked on the door once. As soon as she heard them, she went over and opened the door slightly. She saw PO1 and several officers standing behind him, including one officer who was standing on a staircase leading to the next floor's landing. PO1 was a white male with a low haircut, between thirty and thirty-five years old, and wore a black shirt and light blue jeans. There were at least six officers in total; five white males and one black male. All the officers were wearing their shields around their necks.

The officers asked § 87(2)(b) for her name and the names of the other occupants of the apartment. She complied with this request. § 87(2)(b) lives with her § 87(2)(b)-year-old son, and her § 87(2)(b)-year-old cousin, § 87(2)(b). The officers told her that they wanted to ask a few questions, and § 87(2)(b) agreed to speak with them. She told them she needed to go put clothes on and would be back to speak with them in the hallway in a few moments.

When she tried to close the door, PO2 placed his foot in the door jamb so she could not close the door. PO2 was a black male, standing 5'4" tall, with a medium build, approximately thirty years old, and a full beard. He was wearing a black or white cab driver's hat and a light colored flight jacket. § 87(2)(b) told PO2 that she did not want the officers to enter her house and asked PO2 to move his foot so she could close the door. PO2 said, "Don't worry, ma'am, no one is going to come in." She trusted PO2 and went to her bedroom to change. While in her room, § 87(2)(b) heard the officers enter the apartment. She went to the front door to ask why the officers entered her house. The officers told her they could not conduct their business outside her apartment. § 87(2)(b) only recalled one other officer, PO3, who was a heavyset white male dressed in a plaid shirt. The other three officers were nondescript white males, who she would not be able to recognize. § 87(2)(b) only spoke with PO1 and PO2 during the incident.

The officers claimed to have a search warrant. When § 87(2)(b) asked to see it, they refused to show it to her. They stood in her living room and did not go anywhere else in the apartment. PO1 told her that they were looking for a past tenant of the apartment and showed § 87(2)(b) a picture of a woman. § 87(2)(b) did not recognize the woman and told the officers that she did not know who the woman was. The officers did not ask § 87(2)(b) about anything else.

§ 87(2)(b) witnessed the entire incident. The officers asked both § 87(2)(b) and § 87(2)(b) for their ID's, which they glanced at and then returned. § 87(2)(b) asked the officers if they had damaged her peephole early in 2012, and they replied that they had not.

§ 87(2)(b) asked them for their names, shield numbers, or business cards. They did not provide any identification. When she asked them to verbally identify themselves, they refused to do so. She went to write down their shield numbers. PO2, who was closest to her, was standing at an angle which prohibited her from seeing what his shield number was. At the same time as trying to write, § 87(2)(b) was on the phone with her mother. The officers left the apartment before she could write this information down. They were at her apartment for approximately fifteen or twenty minutes.

After the officers left, at approximately 6:45 AM, § 87(2)(b) called the 77th Precinct and spoke to an officer who told her his name was PO Kim. She told him what had happened. PO Kim asked her why she had let the officers into her house, and she told him that she had not. PO Kim asked if § 87(2)(b) wanted to file a complaint and she said yes.

PO Kim sounded bored on the phone. Because she did not trust PO Kim to enter the complaint properly, she hung up and went to the precinct herself to file the complaint in person.

She went to the 77th Precinct that evening after work. There was a female civilian at the front desk who told § 87(2)(b) that they do not take the kind of complaint she was trying to file. § 87(2)(b) thought she was a civilian because this woman was wearing street clothes, she had no shield displayed, and she was sitting at the front desk of the precinct, located on the right hand side of the entrance. This civilian was a black female with dreadlocks, looked to be about 5'9", had a medium build, and was in her forties. § 87(2)(b) informed the woman that she had spoken with an officer over the phone earlier. The woman provided the 1-800 number for the CCRB. § 87(2)(b) asked for the woman's name but she refused to provide it. This woman was alone, and after she provided the CCRB phone number to § 87(2)(b) she refused to speak with § 87(2)(b) again. § 87(2)(b) left and contacted the CCRB.

§ 87(2)(b) had never seen any of these officers before the incident date, and has also not encountered them after this date. § 87(2)(b) thought that officers had damaged her peephole on the previous occasion in early 2012. She believed this because an acquaintance

informed her that police had been in § 87(2)(b)'s building earlier that day and had asked where § 87(2)(b) lived. These officers said they were looking for the previous tenant on that day.

Attempts to Contact Civilians

Inv. Tripathi called § 87(2)(b) five times between June 11, 2012 and August 22, 2012. A message was left on § 87(2)(b)'s voicemail when possible. Between June 11, 2012, and July 18, 2012, two please call letters were sent to § 87(2)(b). Neither letter was returned to the CCRB by the United States Postal Service. As of August 8, 2013, § 87(2)(b) has not contacted the CCRB.

On February 4, 2013, the undersigned investigator sent § 87(2)(b) a case reassigned letter. On May 29, 2013, that letter was returned to the CCRB by the United States Postal Service with the notation letter not deliverable as addressed. Between June 19, 2013, and June 26, 2013, the undersigned investigator called § 87(2)(b) a total of three times, and left a message on her voicemail two of those times.

NYPD Statement

Subject Officer: SGT. RAYMOND TOMINS

- *Sgt. Raymond Tomins is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and hazel eyes.*
- *On May 15, 2012, Sgt. Tomins was assigned to warrant enforcement. He was dressed in plainclothes, and was working with Det. Brian Ilund, Det. Michael Ragona, Det. Felix Garcia, and Det. Michael Perez. Sgt. Tomins was working from 4:15 a.m., until 12:50 p.m, and was operating out of an unmarked RMP# § 87(2)(e), § 87(2)(f).*

Memo Book

“6:20 a.m. 1381 Sterling.” (encl.10-12)

CCRB Statement

Sgt. Tomins was interviewed at the CCRB on August 2, 2013 (encl.13-14). On May 15, 2012, at approximately 6:20 Sgt. Tomins, Det. Felix Garcia, Dt. Michael Perez, Det. Brian Ilund, and Det. Michael Ragona arrived at § 87(2)(b) in Brooklyn. Sgt. Tomins believed that they went to the location to execute warrants, however, he has no independent recollection of this incident or what transpired inside of § 87(2)(b).

Sgt. Tomins was presented a photocopy of § 87(2)(b)'s NY identification card, however, this failed to refresh his memory. Sgt. Tomins was explained the basic details of the incident, however, this did not help him remember. Sgt. Tomins did not recall interacting with anyone or entering any apartments in § 87(2)(b) on that day. Sgt. Tomins and his team left § 87(2)(b) without arresting anyone. Sgt. Tomins did not recall refusing to provide his name, shield number, or business cards to any civilians inside of § 87(2)(b). Sgt. Tomins did not recall any other officer refusing to provide their names, shield numbers, or business cards to any civilians inside of § 87(2)(b). Sgt. Tomins did not recall going to § 87(2)(b) in the past.

NYPD Documents

Warrant

There was an arrest warrant issued for § 87(2)(b) who resided at § 87(2)(b) in Brooklyn. (encl.25)

Movement Log

The movement log from May 15, 2012, shows that at 6:00 a.m., Det. Garcia, Det. Perez, Sgt. Tomins, Det. Ilund, and Det. Ragona went to § 87(2)(b) in RMP# § 87(2)(b) (encl.15-16).

Status of Civil Proceedings

- As of August 2, 2013, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident. (encl.60)

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officers' CCRB History

- Sgt. Tomins has been a member of the NYPD for 21 years and there are no substantiated allegations against him (encl.1).

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl.2)

Conclusion

Identification of Subject Officers

§ 87(2)(b) stated that there were six officers at her apartment. The movement log for the day identifies five officers who responded to § 87(2)(b). § 87(2)(b) stated that after the officers entered her apartment she asked them for their information, however she did not say which specific officers she asked or whether she believed that they heard her request. § 87(2)(b) did not ask the officers for their information a second time. § 87(2)(g)

The undersigned investigator called § 87(2)(b) three times between June 19, 2013, and June 26, 2013 to obtain additional information about her complaint. A message was left on her voicemail each time. Furthermore the reassignment letter sent to § 87(2)(b) was returned to the CCRB with the notation not deliverable as addressed. Consequently, no further correspondences were sent to § 87(2)(b). As of August 5, 2013, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(g)

Therefore, it is recommended that Allegation B be pled against "officers."

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Raymond Tomins authorized the entry and search of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that she told the officers not to enter her apartment and when they assured her that they would not, she left the doorway and went to her bedroom to change. When she returned, the officers had entered claiming they had a warrant and saying that they wanted to talk privately to her.

Sgt. Tomins could not recall any specific details about what he did in § 87(2)(b) on the day of incident. Sgt. Tomins' memo book notes that he was present at the apartment building at the time of the incident, but does not have any notation on what he did there. The CCRB found a warrant for another tenant of the apartment.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Therefore, it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B – Abuse of Authority: Officers refused to provide their names and shield numbers to § 87(2)(b)

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation B are closed as Officers Unidentified.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date